

Smt. Shadab Parveen v. State of U.P. and 2 Others

High Court of Judicature at Allahabad · Division Bench · 4 January 2024 · 2024:AHC:1348-DB · Writ - C No. 44620 of 2023 · **Disposed; clause 6.5 objections after Rs.50,000 deposit**

HEADNOTE

A dispute about the correctness of an electricity bill is to be raised under clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ against a recovery citation was disposed of on deposit of Rs. 50,000 and filing of objections, to be decided within four weeks, the recovery certificate remaining in abeyance until that decision and thereafter abiding by it.

FACTUAL SUMMARY

Smt. Shadab Parveen filed a writ against a recovery citation dated 8 August 2023 issued by respondent No. 3 for electricity dues. She had applied for permanent disconnection because the pole through which electricity was supplied to her premises had been uprooted. The Electricity Department told the Court that a dispute about the correctness of the bill must be raised under clause 6.5 of the U.P. Electricity Supply Code, 2005. Her counsel stated that she would deposit Rs. 50,000 and sought a decision on her objections.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-correctness dispute under clause 6.5

HOLDING

A dispute about the correctness of an electricity bill is to be raised under clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ was disposed of on the petitioner depositing Rs. 50,000 before respondent No. 2 with a true attested copy of the order and filing objections to the recovery citation dated 8 August 2023. The respondents must decide those objections within four weeks. Until that decision, no further action may be taken on the recovery certificate, which thereafter abides by the decision. ¶ 3-5

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Court accepted that a challenge to the correctness of the electricity bill and the recovery citation is to be pursued by objections under clause 6.5, and disposed of the writ on that route rather than deciding the dues. ¶ 3-5

clause-6.5-pending-representation-to-be-decided On deposit of Rs. 50,000 and filing of objections to the recovery citation, the respondents must decide those objections within four weeks, and the recovery certificate stays in abeyance until the decision. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY CITATION DATED 8 AUGUST 2023 WAS CORRECT, INCLUDING ANY EFFECT OF THE REQUEST FOR PERMANENT DISCONNECTION AFTER THE SUPPLY POLE WAS UPROOTED

Left to the respondents on objections under clause 6.5 after the deposit. ¶ 5